

**UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NEW YORK
ROCHESTER DIVISION**

Marc Moszkowski, Plaintiff,

v.

David L. Rumsey, et al., Defendants.

Case No.: 6:26-cv-06015-EAW



**EMERGENCY MOTION FOR IMMEDIATE RULING ON PENDING
MOTION FOR LEAVE TO PROCEED IN FORMA PAUPERIS AND FOR
CONSIDERATION OF EMERGENCY INJUNCTIVE RELIEF**

Plaintiff, proceeding *pro se*, respectfully moves the Court for an immediate ruling on his pending Motion for Leave to Proceed *In Forma Pauperis*, so that this action may proceed without further delay and the Court may consider Plaintiff's request for emergency injunctive relief before irreparable harm occurs. In support, Plaintiff states as follows:

1. Plaintiff commenced this action by filing his Complaint on January 6, 2026. On January 15, 2026, Plaintiff filed his Motion for Leave to Proceed *In Forma Pauperis*. That motion remains pending more than six months later, and no summons has issued because it has not yet been adjudicated.
2. On March 26, 2026, Plaintiff subsequently submitted a written status inquiry requesting information concerning the case. Despite that inquiry, the procedural posture of the case remains unchanged.



3. As a consequence, this action has remained at its initial procedural stage. The Court has not yet had an opportunity to consider the merits of Plaintiff's federal claims or any request for emergency injunctive relief because the pending Motion for Leave to Proceed *In Forma Pauperis* remains unresolved.
4. Since the filing of this action, the injuries alleged in the Complaint have continued both in the United States and in France. Most immediately, the French court is scheduled to issue its decision on September 4, 2026, concerning the judicial sale of Plaintiff's real property. An adverse ruling could place Plaintiff's longtime family property on a path toward judicial sale and create a substantial risk that the resulting harm will become irreversible before this Court has an opportunity to consider interim relief. Monetary damages would not constitute an adequate remedy for the permanent loss of Plaintiff's longtime family property and the rights associated with it.
5. Unless the pending Motion for Leave to Proceed *In Forma Pauperis* is resolved promptly, the French court may rule before this Court has any opportunity to determine whether interim relief is warranted. Plaintiff respectfully submits that the requested relief is therefore necessary to preserve this Court's ability to provide meaningful judicial review before the threatened injury becomes effectively irreversible.
6. Plaintiff does not ask this Court to decide the merits of his claims at this time. He respectfully requests only that the pending Motion for Leave to Proceed *In Forma Pauperis* be resolved so that the Court may consider any request for interim relief before events outside this Court render such relief ineffective.



7. Plaintiff therefore respectfully requests that the Court act upon the pending Motion for Leave to Proceed In Forma Pauperis without further delay so that this action may proceed and the Court may determine whether interim relief is warranted before the September 4 proceedings materially alter the status quo.

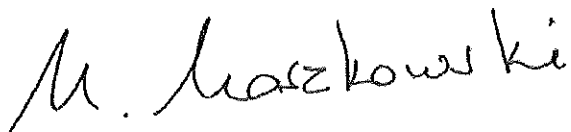
WHEREFORE, Plaintiff respectfully requests that the Court:

A. Promptly rule upon Plaintiff's pending Motion for Leave to Proceed *In Forma Pauperis*;

B. Upon resolution of that motion, direct that this action proceed without further unnecessary delay, including the issuance of summonses and such further orders regarding service of process as the Court deems appropriate;

C. Thereafter, consider Plaintiff's request for temporary injunctive relief before the threatened injuries become irreversible; and

D. Grant such other and further relief as the Court deems just and proper.



Respectfully submitted,

Marc Moszkowski

Pro Se Plaintiff



Marc Moszkowski
Le Verdos
83300 Châteaudouble
France
email: mmm@deepgulf.net
Phone: (251) 300 4820 (U.S.)

**This mailing duplicates the documents
transmitted by fax on July 24, 2026, and
is provided as a courtesy copy.**

July 24, 2026

Clerk of Court

United States District Court
Western District of New York – Rochester Division
100 State Street
Rochester, NY 14614
By fax: (585) 613-4035

**Re: Moszkowski v. Rumsey et al., Case No. 6:26-cv-06015-EAW
U.S. District Court, Western District of New York**

Dear Clerk of Court:

Please find attached an Emergency Motion requesting an immediate ruling on Plaintiff's pending Motion for Leave to Proceed In Forma Pauperis.

Plaintiff submits this motion by fax solely because the pending Motion for Leave to Proceed In Forma Pauperis has not yet been resolved, and because proceedings scheduled in early September create time-sensitive circumstances.

Plaintiff respectfully requests that this correspondence and the attached motion be brought to the attention of the Court as appropriate.

Respectfully,

Marc Moszkowski, Plaintiff, Pro Se



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MARC MOSZKOWSKI
C/O LOTT SHIP AGENCY
259 N. CONCEPTION ST.
MOBILE, AL 36603

 Mailed via DocuPost.com

*****AUTO**All For SCF 144

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